

Torts
Ranson v. Kitner
31 Ill.App. 241. (1889)

Keyword Subject

Mistake

Facts

The defendant was hunting for wolves and saw plaintiff's dog. The dog resembled a wolf and the defendant killed it as such.

Procedural History

Trial Court: In favor of Plaintiff

Appeal: In favor of Plaintiff

Issue

Is the defendant liable for damages caused by a mistake that was made in good faith?

Holding: Yes; Judgment Affirmed

Principle

A defendant holds liability for damage that results from a mistake

Reasoning

The judge intentionally uses the term "mistake" to indicate that the damages, though made in good faith, were intentional and therefore there is liability

Separate Opinions

Notes